

CV-24-004401 FLETES, IMELDA vs GROSSMAN, ERNEST – a) Defendant’s Motion to Deem Matters Admitted; Request for Sanctions – MOOT in part, granted in part; b) Defendant’s Motion to Compel Responses to Request for Production of Documents, Set One; Request for Sanctions – MOOT in part, granted in part; c) Defendant’s Motion to Compel Responses to Form Interrogatories, Set One; Request for Sanctions - MOOT in part, granted in part.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) MOOT in part, granted in part. The Court finds that Defendant/Cross Defendant Ernest Grossman failed to timely respond to Defendant/Cross Complainant Rico's Pizza's Request for Admissions, Set One served on January 8, 2026, but that since the filing of this motion Mr. Grossman has served responses that are substantially compliant with Code of Civ. Proc. §2033.220. Therefore, the Court is not required to and does not order that the genuineness of any documents and the truth of any matters specified in the requests are deemed admitted. See Code of Civ. Proc. §§'s 2033.220, 2033.280(c). However, the Court finds that the filing of this motion was necessary to elicit Mr. Grossman's responses, and therefore the Court finds that Rico's Pizza is entitled to monetary sanctions of \$225.00 for attorney's fees reasonably incurred pursuant to Code of Civ. Proc. §§'s 2033.010(d), 2033.280(c) and Cal. Rules of Court Rule 3.1348(a). Said sanctions are awarded against Ernest Grossman and are to be paid by no later than 9/8/26. b) MOOT in part, granted in part. The Court finds that Defendant/Cross Defendant Ernest Grossman failed to timely respond to Defendant/Cross Complainant Rico's Pizza's Requests for Production served on January 8, 2026. The Court notes that Mr. Grossman has served responses since the filing of this motion. However, the Court finds that this motion was necessary to elicit Mr. Grossman's responses, and therefore the Court finds that Rico's Pizza is entitled to monetary sanctions of \$210.00 for its reasonable attorney's fees and costs pursuant to §§2031.300(c), 2023.010 (d) and Cal. Rules of Court Rule 3.1348 (a). Said sanctions are awarded against Ernest Grossman and are to be paid by no later than 9/8/26. c) MOOT in part, granted in part. The Court finds that Defendant/Cross Defendant Ernest Grossman failed to timely respond to Defendant/Cross Complainant Rico's Pizza's properly propounded Form Interrogatories, Set One served on Ernest Grossman on January 8, 2026, but that since the filing of this motion Mr. Grossman has served responses. However, the Court finds this motion was necessary to elicit Mr. Grossman's said responses and accordingly finds that Rico's Pizza is entitled to monetary sanctions of \$225.00 for attorney's fees reasonably incurred in bringing this motion pursuant to Code of Civ. Proc. §§2030.290(c) 2023.010(d) and Cal. Rules of Court Rule 3.1348(a). Said sanctions are awarded against Ernest Grossman and are to be paid by no later than 9/8/26. The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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a) MOOT in part, granted in part.

The Court finds that Defendant/Cross Defendant Ernest Grossman failed to timely respond to Defendant/Cross Complainant Rico's Pizza's Request for Admissions, Set One served on January 8, 2026, but that since the filing of this motion Mr. Grossman has served responses that are substantially compliant with Code of Civ. Proc. §2033.220. Therefore, the Court is not required to and does not order that the genuineness of any documents and the truth of any matters specified in the requests are deemed admitted. See Code of Civ. Proc. §§'s 2033.220, 2033.280(c).

However, the Court finds that the filing of this motion was necessary to elicit Mr. Grossman's responses, and therefore the Court finds that Rico's Pizza is entitled to monetary sanctions of \$225.00 for attorney's fees reasonably incurred pursuant to Code of Civ. Proc. §§'s 2033.010(d), 2033.280(c) and Cal. Rules of Court Rule 3.1348(a).

Said sanctions are awarded against Ernest Grossman and are to be paid by no later than 9/8/26.

b) MOOT in part, granted in part.

The Court finds that Defendant/Cross Defendant Ernest Grossman failed to timely respond to Defendant/Cross Complainant Rico's Pizza's Requests for Production served on January 8, 2026.

The Court notes that Mr. Grossman has served responses since the filing of this motion. However, the Court finds that this motion was necessary to elicit Mr. Grossman's responses, and therefore the Court finds that Rico's Pizza is entitled to monetary sanctions of \$210.00 for its reasonable attorney's fees and costs pursuant to §§2031.300(c), 2023.010 (d) and Cal. Rules of Court Rule 3.1348 (a). Said sanctions are awarded against Ernest Grossman and are to be paid by no later than 9/8/26.

c) MOOT in part, granted in part.

The Court finds that Defendant/Cross Defendant Ernest Grossman failed to timely respond to Defendant/Cross Complainant Rico's Pizza's properly propounded Form Interrogatories, Set One served on Ernest Grossman on January 8, 2026, but that since the filing of this motion Mr. Grossman has served responses.

However, the Court finds this motion was necessary to elicit Mr. Grossman's said responses and accordingly finds that Rico's Pizza is entitled to monetary sanctions of \$225.00 for attorney's fees reasonably incurred in bringing this motion pursuant to Code of Civ. Proc. §§2030.290(c) 2023.010(d) and Cal. Rules of Court Rule 3.1348(a). Said sanctions are awarded against Ernest Grossman and are to be paid by no later than 9/8/26.

The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

There are no tentative rulings in Department 19

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